

THE GEORGE DOUGLAS PAPERS

A family reading edition

Volume III

Folder 2: correspondence and legal papers

A revised reading in plain English

Prepared for Volney Douglas

Revision 1.1 September 2026

Read from the scanned originals. Uncertain words and damaged passages are marked in brackets.

About this volume

This volume is a readable modern-English version of folder 2: correspondence and legal papers. It accounts for every page in the supplied scan, including covers, notes, fragments, and duplicate documents.

Square brackets mark uncertain words, lost passages, and editorial explanations. Page references in the entries count the cover of the source PDF as page 1. The source images, rather than this modernization, remain the basis for settling differences between readings.

The first reading was prepared separately. Revision 1.1 incorporates selected source-image checks informed by comparison with the annotated edition and another agent's contextual review. It is AI-assisted and has not been independently human verified. See Volume I for the method and limits.

Use the linked contents, PDF bookmarks, or Word Navigation pane to move between documents. The printed footer numbers belong to this edition; the source-page labels lead back to the scans.

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SOURCE 05 • FOLDER 2 • SCAN PAGE 1

Archive cover

[ACU Digital Commons cover for George Douglas Papers Folder 2, Correspondence and Legal Papers.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 2

Label for Henry Douglas's letter

To N. L. Douglas, from Henry Douglas, Palestine, Texas, January 12, 1855. [Letter follows on scan pages 3-4.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 3-4

Henry Douglas writes to his father about his medical practice

[Scan page 3]

Palestine, Texas, January 12, 1855

Dear Father,

I have been looking for a letter from home for a long time, having heard from none of you since I left [them?] in October. But as I have not heard, I [propose?] to write again, for [illegible phrase]. I think it rather uncertain when you would hear from me. In case any of my recent letters have failed to reach you, I should say that I have written several times since November. This must excuse me if that is what happened.

I very much wanted a letter from you before making arrangements for this year, and waited until New Year's Day for that purpose. Then, left entirely to my own judgment, I decided to remain here another year and risk the consequences. Dr. Kendrick and I have formed a partnership for the year. I receive one-third of the accounts and pay one-third of the expenses, as well as my own board, and provide my own horse.

The advantages of this arrangement are his experience, a share in a firmly established practice, and shared responsibility in difficult cases, which is no small consideration. The disadvantages are:

[Scan page 4]

The possibility of making more money elsewhere; the greater incentive to study if I had to rely on my own resources; and perhaps the loss of a good place to practice by arriving a year later. Have I acted wisely or not?

We have great opposition [remaining words unclear], both from numbers and prejudice. However, this prejudice is giving way in people's minds. As for the doctors, it makes very little difference what they think, say, or do. Dr. K.'s practice has been steadily increasing for some time and will continue to do so. Old Mr. Ranson, whom I take to be a man of strong prejudices, has declared that he intends to try Dr. K. the next time he needs a physician. Others say the same. I mention him because you know him.

I wrote to Warren about a cancer case we are treating. It was considered doubtful, and probably still is, but the patient is now doing well and we have more hope. It was a great risk, but will be a great triumph if a cure is achieved.

My health is good. I think I can venture to promise you a visit in the spring, perhaps April. I could come sooner, but the winter winds and sleet are too bad. If you have not written, please do so immediately. My love to all.

Yours with all affection,
Henry Douglas

[Addressed at the foot to N. L. Douglas.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 5

Label for Henry's letter to Mary

To Mrs. Mary Douglas from Henry Douglas. Palestine, Texas, April 8, 1853.

SOURCE 05 • FOLDER 2 • SCAN PAGES 6–7

Henry Douglas writes to his mother about coming home

[Scan page 6]

Palestine, Texas, April 8, 1853

Dear Mother,

The letter from you and Susannah came by the last mail. Since you may be somewhat disappointed by the delay in my promised visit, I am writing a few lines.

I received a letter from Uncle Sam a short time ago suggesting May 1 as the best time for me to come up, because of his court commitments in April and Jesse's and Warren's absence. He thought they probably would not be home until about then. As it made no significant difference to me, I wrote him immediately that I would come during the last week of April. In case that letter should go astray, I am writing this one. Your letter was nearly three weeks on the way. If this one travels no faster, and nothing prevents me, I will be with you soon after you receive it.

I am pleased that Susannah has agreed to come down with me. I hope there will be no disappointment of any kind, and that the step will prove entirely satisfactory to everyone concerned. I think you are inclined to praise my humble self far too highly in this matter. I have only done what seemed to me a reasonable duty. I feel that I have been blessed beyond my expectations in whatever

[Scan page 7]

I have undertaken since I left your home to seek my fortune in the wider world. As long as memory lasts, I will never forget the day I parted from Father on the wide, lonely prairie near the Willow pond: his parting advice, and the loneliness of the hours that followed as I walked to Porter's Bluff. Never before had I felt so isolated. Never had I known what it was to be homeless, without a roof, and effectively friendless. I was going among strangers and did not know where. I took everything on trust, and I have not been disappointed. I have been blessed with health and plenty, not as abundantly as

some, but as much as I had any right to hope for. I repeat that I deserve no praise. If I can help others, I am only doing my duty.

You may therefore expect me toward the end of April, though of course I cannot say precisely when. I hope to stay with you for a week or ten days, perhaps longer. The weather here has been very dry for a long time, and the crops are suffering badly for rain. The corn has been badly frostbitten, and much of it will have to be planted again. I fear that your wheat has been ruined.

I remain, as ever, your affectionate son,
Henry Douglas

[Addressed at the foot to Mrs. Mary Douglas.]

P.S. Give my love to all. Remember me to Mr. Orr and Aunt Cynthia, and so forth.
H. D.

SOURCE 05 • FOLDER 2 • SCAN PAGE 8

Label for a letter about driving sheep to Texas

To N. L. Douglas from Henry Douglas. Mississippi County, Missouri. June 23, 1860. About driving a flock of sheep to Texas.

SOURCE 05 • FOLDER 2 • SCAN PAGES 9–11

Henry Douglas describes the difficulties of a sheep drive

[Scan page 9]

Mississippi County, Missouri, June 23, 1860

Dear Father,

After a long interval, I now have an opportunity to write to you. I have nothing encouraging to report. I have had to pay from one to two dollars for sheep, have had a great deal of trouble finding them, and have incurred expenses in collecting my flock. Mr. Willis [Holm?] sent me \$500 to get him some sheep. With the \$1,500 I have bought 750 head, and I do not know how I will have enough money to get them to Texas, as I have only about \$200 left.

I bought common sheep in Callaway and Graves Counties, Kentucky: lambs at \$1 and ewes at \$1.25 a head. But I could not get enough, so I went back to Christian County and got about 250 head at \$1.75 and \$2 a head. These are finer sheep, and I would now prefer to have invested all my funds in sheep like them.

I crossed the Mississippi at the Iron Banks last Sunday and had to pay eight cents a head for the ferry. After driving for two days, I had to stop because the sheep were getting a disease from poison or something else. Several have died. Altogether I have lost nearly fifty head since I started, mostly because they slipped away into the thickets during the first few days'

[Scan page 10]

drive. I learn that every flock that has passed through here has suffered severely in the same way. Last year, about this time, a Mr. Long passed through with 1,000 and lost 150 to 200. A Mr. [South?], a

Methodist preacher, with 300 or 400, lost only a few. He passed through about the end of July. A few days ago a flock of 700 or 800 passed from Rutherford County, Tennessee, and lost a great many. People here say that I have escaped more lightly than any of them. They also say that all the flocks did well after leaving here, which I greatly hope is true.

I now have my sheep in a large crabgrass pasture, free of charge, and will remain until I think it prudent to start. I hope that will be in three or four days. Nearly all are doing well, but perhaps fifty show signs of disease. The first symptoms are drooping and swelling of the ears, which thicken as the tissue fills with yellow fluid. The sheep become dull and sluggish. In some cases the head swells; the skin hangs in a pouch under the jaw. I have stuck my knife into several, and the yellow fluid flowed freely. I know I have lost five since crossing the river, and one more will probably die.

I forgot to say that, after the head swells, the sheep appear to suffer intolerable itching, judging from their behavior. Their hair comes off when the swelling goes down. I have two tollgates

[Scan page 11]

to pass before I get clear of the swamps. After that, I suppose there will be no more until I reach the Fort Gibson ferry on the Arkansas. I have four hired men at \$15 a month each. Taking everything together, I cannot make the drive profitable, if I do not actually lose money on it.

I have not heard from any of you since I left Texas, nor from Ellen since I left Lincoln County. Taking everything into consideration, I cannot help feeling rather downhearted. But win or lose, I am bound to go through with it. My health is still good, and if I do not get sick, I think I can stand it.

Now that I have written this, I do not know that it would be best to send it. But you had better know the truth than remain in suspense. I suppose I will reach Springfield, Missouri, in thirty or forty days. You must write to me there, and also at Fort Gibson. Write to Warren to do the same, as I am very anxious to hear from all of you.

I have been much disappointed and troubled by men who agreed to make the trip with me but failed to arrive at the appointed time; some did not come at all. This forced me to hire temporary hands at higher prices and pay them off when they quit, which has been a heavy drain on my pocket. I will write again. For now, this is enough. Love to all.

Your affectionate son,
H. Douglas

SOURCE 05 • FOLDER 2 • SCAN PAGE 12

Samuel Wallace promises payment in corn or money

[Label: Promissory note to N. L. Douglas by Samuel Wallace, October 2, 1832.]

By December 25 next, I promise to pay N. L. Douglas, at his house, five barrels of corn or four dollars, for value received. October 2, 1832.

Samuel Wallace [seal]

SOURCE 05 • FOLDER 2 • SCAN PAGE 13

Label for a business letter

To L. N. Douglas [initials in this order on the label]. Business letter from James Bass. Murfreesboro, Tennessee. April 18, 1854.

SOURCE 05 • FOLDER 2 • SCAN PAGES 14-15

James Bass asks about land and taxes

[Scan page 14]

Murfreesboro, Tennessee, April 18, 1854

My dear sir,

It has been about two years since I heard from you about our business. I believe it has been nearly three years. I would be glad to receive a letter from you giving me a full account of everything, and I hope you will write immediately upon receiving this.

I have recently bought from Governor A. [Gullett?] the remainder of the Littleton White tract of land. The purchase includes about 3,250 acres. You know where it is, and I want you to attend to it. See whether the taxes have been paid, and give me any information you can obtain about it.

I would be obliged if you would write fully about the Levi Dickson tract on the Trinity River. I believe it is called the Levi Dickson tract. Governor A. [Gullett?] owns it, and I am thinking of buying it. I believe the land is at the mouth of Five Mile Creek [the word "creek" replaces a crossed-out word]. Write to tell me what the land is worth and give me any information you have or can obtain about it.

[Scan page 15]

I expect to be in Texas in the fall and will see you.

I am your friend and obedient servant,
James Bass

[Address panel]
Nathaniel Douglas
Red Oak Post Office
Texas

SOURCE 05 • FOLDER 2 • SCAN PAGE 16

Label for the Farrar promissory note

October 12, 1852. Promise to pay G. A. Sublett \$520 by G. A. Farrar and F. L. Farrar.

April 20, 1853: \$15 received on the note by N. L. Douglas for G. A. Sublett.

SOURCE 05 • FOLDER 2 • SCAN PAGES 17-18

Debt payable to G A Sublett

[Scan page 17]

On or before March 1 next, I promise to pay G. A. Sublett, or his order, five hundred and twenty dollars for value received. Signed and sealed October 12, 1852.

G. A. Farrar

F. L. Farrar

[Scan page 18: endorsements on the reverse]

April 20, 1853. Received fifteen dollars on this note. N. L. Douglas, for G. A. Sublett.

Farrar's note to Sublett.

Pay the amount of this note to Mr. Ledbetter [other name or wording crossed out]. October 29, 1852.
Geo. A. Sublett.

[Faint writing crossing the reverse is not securely legible.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 19-20

Labels for redemption of land sold for taxes

[Scan page 19]

Redemption of land for taxes, paid by N. L. Douglas, acting as attorney for G. A. Sublett, to the tax collector and assessor of Navarro County, W. B. McCabe. January 23, 1851.

[Scan page 20]

Act of revocation for A. J. Porter's 1,280 acres of land. Taxes paid up to 1850. Taxes and costs: \$14.48.

SOURCE 05 • FOLDER 2 • SCAN PAGE 21

Tax redemption certificate

State of Texas, County of Navarro

This certifies that N. L. Douglas, as agent for G. A. Sublett, has today paid me the taxes, costs of sale, and an additional one hundred percent as required by law, to redeem 1,280 acres of land on Sublett's Creek, under the name of A. J. Porter. I sold the land for the taxes of 1848 on the first day of February 1850. C. M. Winkler purchased it for the taxes and costs. The payment also covers the taxes on the same land for 1849.

In consideration of this payment, and under the authority vested in me by an act of the legislature passed and approved February 11, 1850, I revoke [the sale] and release the land to its rightful owner or owners. I sign and seal this certificate, using a written scroll as my seal, on January 23, 1851.

W. B. McCabe [surname as identified on the label; signature indistinct]

Assessor and Collector for Navarro County

[Further statement at the foot]

I ratify and approve the action of W. B. McCabe, assessor and collector for Navarro County, concerning the 1,280 acres surveyed in the name of A. J. Porter, and release all claim to that land. January 31, 1851.

C. M. Winkler

SOURCE 05 • FOLDER 2 • SCAN PAGE 22

Five dollar debt acknowledgment

[Label: L. W. Webber, acknowledgment of debt to N. L. Douglas, January 21, 1829.]

Due to N. L. Douglas or the bearer: five dollars, for value received. January 21, 1829.

[L. W.?] Webber

SOURCE 05 • FOLDER 2 • SCAN PAGES 23-24

Labels and filing notation for a power of attorney

[Scan page 23]

Geo. A. Sublett of Rutherford County, Tennessee, grants N. L. Douglas power of attorney to sell tracts of land in Dallas, Ellis, and Navarro Counties, Texas, including sales to Mr. Farrar and Ephraim Andrews. October 28, 1852.

[Scan page 24]

Geo. A. Sublett: power of attorney to N. L. Douglas. Filed October 29, 1852, at [2¼?] o'clock p.m., [uncertain abbreviation] F. Hawkins, Clerk. [Fee notation unclear.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 25-26

George A Sublett appoints N L Douglas to manage land and debts

[Scan page 25]

State of Texas, Ellis County

To everyone who sees this document, greetings.

For good and sufficient reasons, I, Geo. A. Sublett of Rutherford County, Tennessee, appoint my friend N. L. Douglass of Ellis County, Texas, as my lawful attorney. In my name, he may bargain, sell, grant, and convey, with or without a general warranty, any or all of my Texas lands in Dallas, Ellis, and Navarro Counties, in one or more tracts as he thinks proper.

He may also make the proper conveyance to Mr. Farrar for a tract of six hundred and forty acres previously sold to him, and to Ephraim Andrews and Company for five hundred and forty acres in two separate surveys. He is authorized to change the boundaries of the six-hundred-and-forty-acre survey previously sold to him [the pronoun's reference is not explicit].

I give my attorney full authority to sell and collect any debts owed to me, at any time, as fully as I could if present. I ratify and confirm whatever my attorney lawfully does concerning these matters.

Signed and sealed, using a scroll as my seal, October 28, 1852.

Geo. A. Sublett [seal]

[Scan page 26]

State of Texas, County of Ellis

Geo. A. Sublett, named in the document, personally appeared before me, Benjamin F. Hawkins, Clerk of the County Court of Ellis County. I know him well. He acknowledged his signature on the preceding power of attorney and acknowledged that he had signed, sealed, and delivered it as his own act and deed for the stated purposes.

Signed under my hand and official seal, October 29, 1852.

Benjamin F. Hawkins, Clerk, Ellis County

I, Benjamin F. Hawkins, Clerk of the County Court of Ellis County, Texas, certify that this power of attorney was duly recorded on November 8, 1852, at 9 a.m., in Deed Record A, page 163.

Signed under my hand and official seal, November 8, 1852.

Benjamin F. Hawkins, Clerk, Ellis County

SOURCE 05 • FOLDER 2 • SCAN PAGE 27

A poem on loneliness

[A typed copy on the scanned sheet, attributed to G. Douglas, 1867. Rendered in plain English.]

There is a loneliness of heart
That no words can ever express,
Too deep for sorrow's tears to start
And ease the aching breast:
A sunless, motionless, waveless waste,
All dark and drearily forlorn;
And every lovely flower placed there
Conceals a poisonous thorn.

1867, G. Douglas

SOURCE 05 • FOLDER 2 • SCAN PAGE 28

Label for the Crow land sale

Sold by Robert Crow to G. A. Sublett: 1,280 acres of land, Leon County, May 19, 1849. N. L. Douglas acting as attorney.

SOURCE 05 • FOLDER 2 • SCAN PAGES 29–31

Robert Crow conveys a land claim to G A Sublett

[Scan page 29]

State of Texas, County of Leon

On May 19, 1849, I, Robert Crow, acknowledge that G. A. Sublett has paid me one hundred and sixty dollars. In exchange, I grant, sell, and convey to him all the tract or parcel of land containing 1,280 acres secured to me by a certificate issued by the Board of Land Commissioners for Jasper County on January 10, 1840: second class, number 246.

The land and the certificate securing it are to belong to Sublett, his heirs or assigns. For myself, my heirs and assigns, I warrant and will defend the land and certificate to Sublett, his heirs and assigns. I authorize the Commissioner of the General Land Office to issue the patent in the name of G. A. Sublett as my assignee.

[Scan page 30]

Signed and sealed on the date stated above.

Robert Crow [seal]

State of Texas, County of Leon

Robert Crow personally appeared before Daniel M. Brown, Chief Justice and ex officio notary public for this county and state. He acknowledged the preceding instrument as his act and deed for the stated purposes and consideration.

Signed and sealed in office, May 22, 1849.

D. M. Brown, Chief Justice and ex officio Notary Public

[Scan page 31: filing notes]

R. Crow. Filed for record at 9 a.m. on September 8, 1849. Recorded December 14, 1849, in Book A, pages 433 and 434. [Clerk's signature appears to be W. B. White; deputy's name uncertain.] Recording fee: \$1.00.

SOURCE 05 • FOLDER 2 • SCAN PAGE 32

Label for redemption of the Crow land

Revocation concerning Robert Crow's land grant, redeemed for taxes by N. L. Douglas, agent for G. A. Sublett. February 1, 1851 [date on label].

SOURCE 05 • FOLDER 2 • SCAN PAGE 33

Payment to recover a tract sold for taxes

State of Texas, County of Navarro

N. L. Douglas, as agent for G. A. Sublett, has paid the undersigned assessor and collector the legally required sums to redeem 640 acres granted to Robert [Crane?] and listed by G. A. Sublett for the taxes

of 1849. The land was sold for those taxes on July 25, 1850, and bid in by the state for the taxes, interest, and costs of sale.

The amounts are: state tax for 1849, 50 cents; county tax, 25 cents; total tax, 75 cents. Interest at eight percent for [number unclear] months: 8 cents. Cost of sale, deed, and advertising: \$1.00. [Additional fee, wording unclear]: 75 cents. Tax for 1850: 50 cents. Total: \$3.08.

In consideration of these sums, I, W. B. McCabe, assessor and collector for Navarro County, under the authority of the act approved February 11, 1850, revoke [the sale] and release the land to its former owner or owners.

Signed and sealed, using a scroll as a seal, February [3?], 1851.

W. B. McCabe, Assessor and Collector for Navarro County

[Reading note: The certificate's day appears to be the third; the label on scan page 32 gives the first. The acreage in this redemption certificate is 640, while the preceding Crow conveyance concerns 1,280 acres. These figures have not been harmonized.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 34

Acknowledgment and recording of the redemption

State of Texas, County of Navarro

W. B. McCabe, assessor and collector for Navarro County, personally appeared before me, [R. W.?] White, clerk of the county court. I know him personally. He acknowledged that he signed, sealed, and delivered the preceding instrument for the purposes and consideration stated in it.

Signed and sealed in my office in Corsicana, February 3, 1851.

[R. W.?] White, Clerk of the County Court, Navarro County.

[Docket:] Revocation for Robert Crane, 640 acres. Filed for record at 2 p.m. on February 3, 1851; recorded at 2:30 p.m. that day in Book C, page 181. [R. W.?] White, Clerk, Navarro County. Fee: \$1.25.

[Reading note: The docket appears to say Crane. The archive label on page 32 calls the grantee Crow; the uncertainty is retained.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 35

Label and envelope for Sadie's letter

[Archive label:] To Miss Lizzie Douglas from her niece, Sarah Gail (Douglas) Headrick. Bardsdale, California, [written "Sat 29, 1893"; the month is not established].

[Envelope:] From Sadie. Miss Lizzie Douglas, Ferris, Ellis County, Texas. Bardsdale, California postmark, August 9 [year unclear].

[Reading note: The envelope has an August postmark. The following letter's heading does not establish a month; its date is not reconciled with the envelope.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 36–45

Sadie writes about home, the children, and ill health

[Reading note: These leaves are presented in scan order. Some sentences do not continue onto the next scanned leaf; the original sequence is uncertain.]

[Scan page 36]

Bardsdale, [written “Sat, 29th, 1893”; month uncertain]

My dear Aunt,

I finished most of my week's work this morning, so now I will take time to write to you. I am still better. I haven't had a “breakdown” since I wrote last.

I have every room nicely swept. I still have a bed in my sitting room, two rocking chairs, two nicely covered footstools, the stand-table Mr. Vernon made, two tin buckets on the mantelpiece, my vases, and two advertising pictures. That makes the room presentable.

I try to keep the door into the hall closed, so the room is ready to receive anyone. People come at any and all hours because, as Bruce says—

[Added upside down at the top:] This morning I made four glasses of preserves out of the last quart of my blackberries. I haven't much fruit left. Won't I have a time filling my jars [last words unclear]!

[Scan page 37]

—it is “huzzer” (together) with the store. One day he came from the post office and said, “Grandma Chadsey's house isn't huzzer, is it, Mama? Ours is, though.” He noticed that the post office doesn't join the dwelling, while our store does. Don't you think him quite observant?

Mr. Headrick has been laid up with his back for two weeks, until he could scarcely move, but he is much better now. Last week he couldn't help me work at all, so I did a small washing alone. You can see I am better. I sat and rinsed the clothes in a bucket. I used all the rainwater, so I didn't get to wash this week.

Mrs. [Lehue?] started back to Kansas on the nineteenth. Her son and children went with her. She said [bottom of sentence cut off; apparently continued on another leaf].

[Scan page 38]

Last night I dreamed of being at the old homestead and telling you and Grandma my troubles, as I used to do in days gone by, and of seeing Uncle George. It is strange I didn't dream of [obscured] of the rest. A few nights earlier I dreamed of Grandma. You know I often have that pleasure. I suppose it is because I often think [of her] and speak of her.

Since I began writing, Elmo has brought me your letter from the office. Your dresses are lovely indeed. You are following my advice to “get plenty of nice clothes” better than I expected. I am glad of it, and know you will enjoy wearing them this summer.

[Scan page 39]

I got the children broad-brimmed cloth hats for everyday wear. They have nails side by side to hang them on, and Elmo will not let Bruce use his nail [for] anything. You ought to see him coming in with kindling. Whenever and wherever he finds it, he picks it up as loyally as I would and brings it in.

Last Sunday they were sitting in a window when Mr. McKie's cow came along. Elmo remarked that if that cow were married she would have a calf. He meant a calf with her. By that test, most California cows are unmarried.

[Scan page 40]

There is a thought in the piece headed "[title unclear]" by D. L., in the Advocate of April 13, that had never entered my mind. Every mother would benefit from having it impressed on her: we are "teaching our children what is in our own hearts, whether we try or not."

I paused in my busy life and asked, "What am I teaching mine?" I hope [obscured] in true motives the benefit [obscured] the thought. I am impressed [obscured; several words lost under the dark mark] in no other [obscured].

I see in my last paper Uncle George's announcement of the [place unclear] camp meeting. How I wish I could attend as I used to! Remember me to Brother Polly, and tell him I still enjoy looking back on the meetings he held for us before he ever—[sentence continues on a leaf not following here].

[Scan page 41]

I think part of his laughter was because he was so glad to see you. Mr. H. and I think they don't look natural at all, though the work is fine. What a pity the expression isn't good! I never look at them with satisfaction. I always get out the good picture I have of you to counteract the wrong impression.

Last week Mr. H. went to Los Angeles. Kate Vernon stayed with me. Bruce had a cold, fever, and bowel trouble, so we had quite a time. While we were eating supper, over twenty dozen eggs came in to be counted. I ran and got the other lamp and told Kate to light—

[Scan page 42]

—it, and to go on with supper with the children. But bless you, when I returned I found them in the dark and Kate's coffee cold! During the day the children had turned the wick out of the lamp, something they had never done before.

I had to chop kindling and heat the coffee. By the time I had finished eating, washed the dishes, put the children to bed, and made up the yeast bread, I was pretty tired. Besides, I had had a fever since the middle of the afternoon. Then I had to get Elmo up three times in the night.

Next morning I worked with my head down and cooked breakfast. But Bruce vomited, and had to be dressed and have the bed linen changed three or four times before I got—

[Scan page 43]

—it eaten. While we were eating, a life insurance agent came in and tried to get me to influence Mr. H. to insure. I told him it was against my religious convictions. He said Christianity would never keep me from starving to death, and that the majority of Christians favored it.

I told him the majority were on their way to perdition, too. He hammered away, while Bruce stood by me with his drawers soiled, calling for help. Finally I became so provoked that I told him to go to Mr. H. His convictions were somewhat different from mine, and if he could convince him—[the next scan does not continue this sentence].

[Scan page 44]

—to give her kindest regards. You don't know how glad she was to get out of these mountains! But I guess you do, because you were just as glad.

One day Elmo said, "I wouldn't live in Mrs. H. Chadsey's house, would you, Mama, with a barn fixed on?" He also said he thought his stomach had been hurting lately because his Papa didn't clean him well one day when I was away. Now you and Ellen can shake your sides!

Last Monday week I went up to Mrs. Timmons and found her in bed with nervous exhaustion. Her back was something like Mr. H.'s.

[Scan page 45]

At times she is almost blind and deaf. I think it all comes from nervousness caused by weakness. One day the men were away and one of their young mares got caught in the wire. She chopped it out and saved its life. I think that was one of the things that laid her up.

Poor woman! She cries and cries because she cannot keep house just as she used to. Her milk has dried up entirely, so she is raising the baby on a bottle, but it is doing nicely.

I gave her the picture you sent. They all think it good and were glad to get it. But you ought to have seen Elmo when he looked at them! He shrugged his shoulders and laughed and laughed, and said, "Doesn't she look funny!"

[No closing or signature appears on these leaves.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 46

Label for the August letter

To Miss Lizzie Douglas, her aunt, from Sarah "Sadie" Gail Douglas Headrick, Bardsdale. August 8 [year not given].

SOURCE 05 • FOLDER 2 • SCAN PAGES 47-48

Sadie describes a picnic and the children's remarks

[Scan page 47]

Bardsdale, August 8

Dearest Aunt,

I have just finished getting dinner out. Mr. Headrick has gone to work. Elmo is seated on the table and Bruce beside it, [with a cold?], talking away. I am as well as usual. Mr. H. helped me wash yesterday.

Grandma Daugherty's growth has increased, making it so difficult for her to breathe that she has consented to an operation. I am very afraid she will not survive it. Dr. Kingsley is the head man, and Drs. Bard and Mott are to do the work.

I have seen Dr. H. passing once since his return. I warmly told him I was glad to see him back and expressed my lasting gratitude for his kindness. I could hardly keep from saying that if he thought half

as much of me as I did of him, he would have called sooner. But we cannot express ourselves freely to strangers.

There was a picnic at Mr. Timm's last Saturday, quite a success. I prepared a good dinner in case I had a chance to go, but the starting hour came with no opportunity. How fully I realized that if I were back there, or even if you were here, it would be different!

If I had acted on my own feelings, I would have made no effort to go. But the children were so anxious that they said if I didn't go down and ask Mr. Wigmore for his cart, they would. I knew they couldn't bring it alone, so I went with them. Fortunately for my [haggard?] face, it had already been spoken for, and I found that out before asking.

I found Mrs. Pickering hardly out of bed, still preparing to go camping in the hope of being able to stay a little longer with her children. I swept her house, baked two jelly cakes, and came home about noon.

Mr. H. took his dinner, so the children and I ate our picnic dinner alone. After finishing, I sat down to read a little. Then Mrs. Henry Chadsey came down in Mrs. Vernon's surrey to get us. Lillie Chadsey had asked several people why I wasn't there, and—

[Scan page 48]

—everyone's answer was, of course, "I guess she didn't have any way." She told them there was no reason I shouldn't have a way when there were so many vehicles there. She hurriedly arranged to send for us. I was thankful, especially for the children.

They had a large table heavily loaded with the choicest food. Mrs. Timm's took almost all her dishes, and everyone else took plenty. It was a set table, just like one at home. But you never heard of such a mixture of dishes! It took quite a while to sort them out. There was lemonade and ice cream, two swings, a croquet set, and a baseball game. Much of the pleasure was due entirely to Lillie Chadsey.

[A crossed-out line is followed by:] It was amusing in the extreme to see Elmo amusing her. Imagine him handling—or rather attempting to handle—over two hundred pounds! But you know she always rather liked him.

That was the fourth and little Ruthie's birthday. What do you think? She went to Santa Paula with Mr. [Ruck?] [Zelott?] and married him without her father's knowledge. The old gentleman is very angry about it. When she went back for her clothes, he ordered her off the place and threatened to disinherit her. It was her eighteenth birthday.

The [name unclear] Haggarts are not at home yet. Grandma Roberts spent last Sunday night with us. I am always so glad to see her. I forgot to say that I heartily wished you could dine with us when we sat down to eat our picnic dinner alone.

Elmo said to me one day, "When a girl marries a young man, she takes his name, doesn't she?" I said yes. He went on, "How many [H...?] will there be then?" Bruce was standing by and put in, "I'm going to marry a Dutch girl."

I must tell you that I earned \$4.50 cutting fruit—a handsome amount for me. Expecting [a letter?] by the next mail, I am, as ever,
Sadie

SOURCE 05 • FOLDER 2 • SCAN PAGE 49

Envelope and label for an incomplete letter

[Envelope:] Mrs. Sara Headrick, Red Oak, Texas. San Francisco postmark, April 27 [year unclear], 6:30 p.m. Two cents postage due.

[Archive label:] Unidentified, incomplete letter, possibly from Sarah Gail “Sadie” Douglas Headrick.

SOURCE 05 • FOLDER 2 • SCAN PAGES 50–53

Incomplete letter about church and family work

[Reading note: No beginning, date, or signature is present. The four leaves are retained in scan order, which interrupts some sentences.]

[Scan page 50]

—while Ellen is in bed, but she is always up so soon that it looks as though you were [unclear]. I think I have heard Mrs. Rutherford speak of Cousin Sarah Jetton. I must warn you right here not to become too infatuated with that son of hers. When you got all those new dresses, I thought it wasn't for nothing. All joking aside—oh, yes, now for the news.

Mr. [Anne?] has bought the Clapp ranch over the mountains. He paid \$1,500. When Mr. [name unclear] left, he took the church organ. So Katie Buddick, Wheeler, and Mary [Cauger?] set to work to raise money to buy another. They succeeded in getting \$35 subscribed. Mr. [Burd?], who owns so much land here, sent a check for \$50, and—

[Scan page 51, rotated for reading]

—if you ever saw people smile, it was last Sunday when Mr. [Swagart?] made this announcement.

Last Sunday week I had a faint hope of getting people stirred up to investigate the Scriptures. Mr. Pickering, an [unclear] and the only person in the school who knows anything about the Bible, suggested that we older people meet once a week and study by subject. But alas, my hopes have almost vanished, as no one seems to like him. I don't know why, unless it is because he knows a little.

Last Sunday we had a Holiness sermon—and such a one! We were justified by faith, and then [words unclear] before we were baptized by the Holy Ghost, which he claimed was sanctification. If I understood him correctly, the crowning point of his being sanctified was quitting tobacco.

[Scan page 52, rotated for reading]

—gotten out of it. But she came, and instead of letting me use the pattern after I had fitted that black Spencer, she insisted on using one of Kate Vernon's and put the whole responsibility on me.

After doing my utmost, while also looking after the children, keeping them out of the ditch and from running away, putting up with Merlin tormenting Elmo, chewing his ear and similar rough play, and managing the store, the dress didn't fit at all. Mrs. Timmons and Hattie were both completely upset and seemed to blame me. I was surely put out! For some time I couldn't compose my nerves enough to sleep. If I ever thanked my Maker for quiet and rest, it was that night.

[Scan page 53]

You don't know how I would like to have one of our preachers come here. I was talking with Mrs. [Swagart?] about religion. She doesn't think water baptism is essential to salvation at all, but still thinks that perhaps sometime she will be immersed. She added that she always had an idea that, if she ever were, the Spirit would descend upon her in the shape of a dove, just as it did on Christ.

Now, you and Ellen, please don't burst out laughing at the woeful disappointment someone is going to experience.

Last week Mr. H. went over the mountains and worked three days. Hattie stayed with me. Mrs. Timmons came down one day with a dress for Hattie for me to cut and fit. She had tried before to draw me into it, but I—[end of leaf; the sentence appears to continue on scan page 52].

SOURCE 05 • FOLDER 2 • SCAN PAGE 54

Label for Fannie's surviving letter pages

Part of a letter from Fannie. Mentions Lizzie and Laura.

SOURCE 05 • FOLDER 2 • SCAN PAGES 55–56

Fannie's incomplete letter

[Reading note: This is a particularly dark and blurred copy. The surviving sheets are numbered 3 and 4. The readable passages are given below; gaps mark writing that could not be resolved confidently, including after enlargement.]

[Scan page 55; manuscript page 3]

[Opening lines partly illegible:] I [hope?] you all [illegible]. [Illegible] here will [illegible] be enough left. We would be ever so glad [illegible]. [Several lines illegible.] I have not heard [illegible] any way. [Names and several words illegible] and [illegible].

[Middle passage partly legible:] I wish you could [illegible]. [Illegible] from here to [illegible]. Like you say, if you are not engaged, he will not stay here and be tied to [illegible]. [Several lines illegible.] We are all [illegible] this evening. [Illegible] friends for a [illegible]. [Closing lines mostly illegible; mention of "another" and possibly a visit.]

[Scan page 56; manuscript page 4]

Oh, Lizzie, I received a letter from one of the prettiest-looking [fellows?] that left Johnson County. He is about [age or description unclear]. If I could tell you who he is, I fear you might turn my rival. He has been a schoolmate of mine. [Unclear sentence]—I can't say I am [unclear] like [unclear], but I [unclear].

[A line at the fold is illegible.] I am not courting [unclear], but [unclear]. Look, if it is [unclear], [unclear] either of them [unclear]. I might not [unclear] your [unclear] [best?] one, maybe.

I shall have to close for want of space, and because I want to write a letter to Tom tonight. I know he will be anxious to hear from home. Please give my love to Laura and also to [name unclear]. [Final cramped lines illegible.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 57

Envelope and labels for a song sent to Lizzie

[Envelope:] Miss Lizzie Douglas, Red Oak, Texas. Woodbury, Tennessee postmark, April 10 [year not visible].

[Label:] Poem to Miss Lizzie Douglas from Mollie, Woodbury, Tennessee.

[Second label:] Poems and essays.

SOURCE 05 • FOLDER 2 • SCAN PAGES 58–59

Song: Just Before the Battle, Mother

[Reading note: The manuscript is already readable English; punctuation and spelling have been regularized while its verse is preserved.]

[Scan page 58]

Just before the battle, Mother,
I am thinking most of you,
While upon the field we're watching,
With the enemy in view.
Comrades brave around are lying,
Filled with thoughts of home and God,
For well they know that on the morrow
Some may sleep beneath the sod.

Chorus:

Farewell, Mother, you may never
Press me to your heart again,
But oh, you will not forget me, Mother,
If I'm numbered with the slain.

Oh, I long to see you, Mother,
And the loving ones at home,
But I'll never leave our banner
Till in honor I can come.
Tell the traitors all around you
That their cruel words, we know,
In every battle kill the soldier
By the help they give the foe.

[Repeat chorus.]

[Scan page 59]

Hark! I hear the bugle sounding;
It's the signal for the fight.
Now may God protect you, Mother,
As He ever does the right.
It's the battle cry of freedom;
How it swells upon the ear!
Oh, yes, we'll rally round our standard,
Or we'll nobly perish there.

[Repeat chorus.]

Written by request, December 9, 1866, for Cousin George.
Mollie

[Additional notes at the bottom are unrelated to the song and partly overwritten. Readable fragments include "2 [unclear] syrup," "5 [pounds?] flour," "25 [cents?] ...," "sugar," "coffee," and "fruit." Remaining words and amounts are unclear.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 60

Label for a recollection of George Douglas

Concerning Uncle George Douglas: his work at Sylvana Church and his death, September 23, 1923.

SOURCE 05 • FOLDER 2 • SCAN PAGES 61–62

George Douglas's last years and Sylvana Church

[Reading note: The leaves are out of narrative order. Page 62 begins the surviving account; page 61 continues its last sentence. Both references are retained.]

[Scan page 62]

My father continued his work with the church at Sylvana until his death on September 23, 1923. Though he opposed the Sunday school, he did not withdraw from the congregation, but tried to present the truth as he understood it. His health became impaired, and he realized that his work was done. He died in [place cut off], and—

[Scan page 61]

—was brought back and buried from the church that had been his life's work. He was a strong Christian, and his guidance was greatly needed in the affairs of the church. He was unable to train anyone to take his place. After his death the congregation was torn by disagreements, and after a few years it stopped meeting.

SOURCE 05 • FOLDER 2 • SCAN PAGE 63

Label for a poem

Poem: "In Answer to the Author of 'Georgie.'"

SOURCE 05 • FOLDER 2 • SCAN PAGES 64–65

Poem about regret, aging, and hope after death

[Reading note: No title or signature appears on these two sheets. The ornate verse is rendered here as plain-English prose, stanza by stanza.]

[Scan page 64]

There in the mist, with my sight failing, I leaned over the iron railing. Useless regrets troubled my soul as I reviewed a life that had accomplished little. Its longings and yearnings, its achievements turning to ashes, and its fiercely burning passions all swept through my frenzied mind.

The years ahead seemed desolate, destined for thorns and a rocky wasteland. Grim despair and sorrow covered my soul like a shroud and hid the door to hope. Clouds gathered, darkness fell, and the deepening night was frightening. The years ahead called me to struggle again with the fate that had brought life's disasters.

Yesterday offered a rosy vision. Today fate mocks us. Tomorrow, in the fields of heaven, we will dream again the dreams we dreamed at the dawn of life.

[Scan page 65]

Now that life is slowly sinking, light and shadow blend. The soul drinks forgetfulness and will lay down its burdens on the dark shore of death. When death's shivering chill comes over us, as it came over our loved ones before us, we may join the joyful chorus singing the eternal anthem, where saints pour out their [homage?].

SOURCE 05 • FOLDER 2 • SCAN PAGES 66–67

In Answer to the Author of “Georgie”

[Plain-English rendering of the poem, stanza by stanza.]

[Scan page 66]

I do not ask for devoted affection. At my age, platonic friendship will surely be enough. Passionate hours are long past; the furtive glance and thoughtful sigh belong to younger lovers.

Give me a strong, helping hand when the clouds of trouble hang low—a friend who will stand by me in danger—and I will go onward. I will meet cold fate with a lifted heart, smile at fortune's frown, and bare my chest to its fiercest blast, even if I fall.

Nature will bring countless beauties with every returning spring, and I enjoy them: the flowers across the wide prairies, the gently flowing, murmuring streams, and the grand, tall trees.

Though I am a hermit, separated from humankind, some joys will stop with me overnight. They will leave a promise that in later years, through changing troubles, they will visit once more, bringing some nameless treasure from the distant [Aiden?] shore.

Hope still foretells many a happy year to come, though fortune may deny them.

[Scan page 67]

Still, I will seize the brighter side: the cheerful hours in which pleasures pass beneath a sunlit sky. Today I will accept the sweetness that comes, and tomorrow I will do the same. In that way I will be sure to receive something from fortune as it flies past.

But idle thoughts so full of love surely become a parody when sent to one “whose work is done” and who has nothing left to risk.

SOURCE 05 • FOLDER 2 • SCAN PAGE 68

Label for a ballad

Poem and song: ballad, January 22, 1881.

SOURCE 05 • FOLDER 2 • SCAN PAGES 69–70

Swinging in the Lane

[Plain-English rendering of the song. The manuscript is dated January 22, 1881.]

[Scan page 69]

Oh, how we laughed in childhood's years of carefree joy! We cared little about the world and passed the time away. The many happy days of long ago will never return—those days when little Rosa Nell and I went swinging in the lane.

Chorus: Goodbye, goodbye, those days have ended. Meet Rosa Nell again? I will never, never forget swinging in the lane.

The boys and girls would often go fishing in the brook, while we stood on its shady banks baiting a bent pin for a hook.

[Scan page 70]

They teased me with their jokes, but I scarcely cared. I would rather sit with Rosa Nell, swinging in the lane.

[Repeat chorus.]

But like a dream, sorrow came. A strange young man from town was introduced to Rosa Nell by Aunt Jemima Brown. She stayed away from school one day; the truth was plain to me. She had gone off with that city man—swinging in the lane.

[Repeat chorus.]

Now, all young men with tender hearts, take advice from me. Don't be so quick to fall in love with every face you see. If you do, you will regret it, wishing they loved you in vain, while they go off with some other man, swinging in the lane.

[Repeat chorus.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 71–72

Poem fragments about nature and developing one's talents

[Plain-English reading, in scan order. The short passages appear as separate blocks on the sheets.]

[Scan page 71]

We should develop the talents hidden within us, so they may shine brightly like the lilies of the field.

And we should develop them—[fragment ends].

We speak of the flowers that grow easily and send their sweet scent on the gentle breeze. We hear the sweet music of birds in the woods, and we should be like them—[fragment ends].

—and not a useless weed.

For nature seems to be mocking, with its bright golden [hue?], the minds of the many [unclear] who make their lives a void.

[Scan page 72]

We now see nature's beauty spread all around us with flowers of gold.

With [patience?] and care, they will help us drive out want and fear. But should we be careless in this bright, glorious year, and fail to develop the talents in our care—[fragment ends].

Then, if this were done, we would, and rightly, find that our talents had not improved: they were burdened with weeds.

SOURCE 05 • FOLDER 2 • SCAN PAGE 73

Receipt for the sale of cotton

A. Trippet & Son, Waxahachie, Texas. October [14], 1874.

Cotton purchased: [quantity and weight too faint to read]; price appears to be 8½ [cents per pound]. Weighing charge: 15 cents. Cash balance: \$[26.75?].

[Archive label:] Receipt for cotton bought by A. Trippet & Son from George Douglas, Waxahachie, Texas, October 14, 1874.

SOURCE 05 • FOLDER 2 • SCAN PAGES 74–76

Sylvana Church endorses George Douglas's preaching

[Scan page 74: label]

Endorsement of the congregation at Sylvana Church for George Douglas, September 1888. Elders H. Douglas and H. G. Orr.

[Scan page 75]

This certifies that Brother George Douglas is a member of the Church of Christ worshipping at Sylvana, Ellis County, Texas. He has been laboring for some time in word and doctrine. We wish him to continue this work, and take pleasure in stating that he preaches with our full permission and complete approval.

My heart says with the Apostle Paul, “Woe is me if I do not preach the gospel of Christ,” remembering the solemn charge to Timothy to preach the word, and so on.

[Docket:] Endorsement of the Sylvana congregation.

[Scan page 76]

Given by order of the church on the second Sunday in September 1888.

Elders: H. Douglas; H. G. Orr.

[Reading note: This is another scan of the endorsement in the separate endorsement PDF, source 03.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 77-79

Sermon notes: Jesus wept

[Scan page 77: label]

Sermon notes, Sylvana Church (Brushy Creek), February 16, 1883. L. [?] Douglas.

[Scan pages 78-79]

These are additional scans of the two-page sermon in the separate sermon PDF, source 02. Its full independent plain-English reading is included in the church documents volume. No additional sermon text appears here.

[Identification from these scans: the sermon considers Christ's greatness and his sympathy with human suffering, taking “Jesus wept” as its central phrase. It is signed L. Douglas and dated at Sylvana, February 16, 1883. The short closing verse begins “Forever reign, victorious King.”]

SOURCE 05 • FOLDER 2 • SCAN PAGE 80

Label for Sarah Douglas's essay

“The Beauty of Culture,” by Sarah Douglas.

SOURCE 05 • FOLDER 2 • SCAN PAGE 81

The Beauty of Female Culture

There is nothing more important than developing our minds. Each of us has been given a mind, some stronger than others. But whatever our degree of intelligence, it is everyone's duty to improve it. If we do not, what will happen? It will become like an uncultivated field, overgrown with briars and weeds.

The greater our abilities, the more we are expected to accomplish. I think the development of the mind matters more than the mind's natural ability alone.

We must also cultivate our hearts, kindness of feeling, and gentleness of character. Developing our manners is very important too. What shows a young lady to better advantage than gracefulness and polite manners? All true politeness begins in kindness of heart. If we feel kindly toward someone, it is no trouble to treat that person kindly.

Let us all work earnestly toward this, so we may become the equals of those who now surpass us by so much.

Sarah E. Douglas
April 21 [year not stated]

SOURCE 05 • FOLDER 2 • SCAN PAGE 82

A damaged essay about friendship

[Reading note: The writing is faint beneath extensive staining. The opening and several later lines remain unresolved.]

[Opening lines illegible.] I have heard [words unclear] the cultivation of our minds [unclear]. But I beg to differ with them, and to say [unclear] there is something [unclear]. [Several words unclear.] There is [unclear] more [unclear] in true [unclear], greater worth in honesty, virtue, and truth.

It is said that mutual confidence is the soul of friendship. Love [unclear], esteem, and affection are its principal elements. [Several words unclear] personal appearance [unclear] after acquaintance [unclear] lasting qualities [unclear]. For all these [unclear].

[A quotation or verse, partly legible:] "While [unclear] the [unclear] of [unclear] ... Is any [unclear] ... [unclear] prove [unclear] ... [unclear] worldly [unclear] ... But true friendship never dies [unclear]."

[The closing lines are too faint to resolve reliably; "While life's ..." is visible. No secure signature or date.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 83–85

Parting from Friends, by Emma Bell

[Scan page 83: label]

Composition: "Parting from Friends," by Emma Bell.

[Scan page 84]

How sad we feel when we part from our dear friends! We feel this even when we part for only a short time and expect to meet again soon. But how much sadder it is to part when we know we will never meet again in this world!

Who can describe the feelings of those who stand around the deathbed of a loving father or mother, brother or sister, and hear the last fond words of love they will ever be able to speak? How agonizing it is afterward to follow their lifeless bodies and see them placed in the cold, silent grave. No one can imagine the feelings caused by such a trial except those who have experienced it.

Everyone should be prepared to die, because we do not know how soon we may be called to leave this beautiful world and all our dear friends and loved ones. We should always be kind to our relatives and friends. We do not know how soon they may be taken from us, and it will be a sad parting indeed if we have ever treated them unkindly.

[Teacher's comment:] Very good.

[Scan page 85]

[Docket:] Miss Emma Bell's composition.

[Additional note:] It is true that parting is very painful, but we must part on earth so that we may meet where there is no more parting, and where sickness [cannot?] come.

SOURCE 05 • FOLDER 2 • SCAN PAGE 86

Label and envelope for the inheritance letter

To Mrs. Mary Douglas and Cynthia Orr, daughters of Rebecca Goodloe, from B. F. Lillard, Murfreesboro, Tennessee, December 6, 1883.

[The archive label describes a circuit court decision in the suit concerning Mrs. Alexander, Rebecca T. Wright; Jacob Wright, brother of Rebecca Wright Goodloe; Lillard's appeal; and the relationship of Jacob Wright and his wife as cousins. These are the label writer's descriptions. The following letter supplies the actual explanation.]

[Envelope postmark:] Ferris, Texas, December 8, 1883.

SOURCE 05 • FOLDER 2 • SCAN PAGES 87–88

B. F. Lillard explains an inheritance decision and appeal

[Scan page 87]

Murfreesboro, Tennessee, December 6, 1883

Mrs. Douglas and Mrs. Orr, Ferris, Texas

Dear friends,

I am sending you an advertisement of the land sale, which explains itself. During the court term, Chancellor Burton fell ill and died. While he was sick, a circuit court judge held his court and decided how the land was to go, but he seemed very confused about the case.

He decided that the 400 acres Mrs. Alexander inherited from her father, Jacob Wright, go to Jacob Wright's nephews and nieces, and to the children of his deceased nephews and nieces or their representatives. He had about forty nephews and nieces. Seventeen are living and about twenty-three are dead, making about forty shares into which the estate would be divided.

Regarding the McGlothlin tract of 230 acres, which Mrs. Alexander inherited from her mother, I will use the judge's own language. He said this tract "ascends" from the daughter, Rebecca, to Mary Wright's heirs. As Rebecca's father and mother were cousins, the heirs of Mary Wright's father and mother who are related to Mary in an equal degree, or who represent relatives in an equal degree, take equal shares of the tract of 235 acres. If those heirs or the people they represent—

[Reading note: The acreage is inconsistent within the letter: 230 acres is written in some places and 235 in another. Both are retained.]

[Scan page 88]

—are not related to Mary Wright in an equal degree, then the heirs nearest to her in blood, or the representatives of those nearest to her, whether of the whole or half blood, take all of the 230 acres in preference to relatives of a more distant degree.

I appealed the whole decree to the Supreme Court. The McGlothlin claimants to the 230-acre tract also appealed. I am not discouraged at all by this court's decision. I am fully satisfied that my interpretation of the law is correct: Mrs. Alexander's first cousins who were alive at her death inherit her whole estate from her. It does not pass back upward to the heirs of her father or mother.

About the time the case is finally decided in the Supreme Court, the money from the land should be ready for distribution.

Very respectfully,
B. F. Lillard

[Added note:] Dear Ida, the Criminal and Chancery Courts are both in session today, and I have no time to write.

B. F. Lillard

SOURCE 05 • FOLDER 2 • SCAN PAGES 89-90

Draft power of attorney for Mary Douglas

[Scan page 89: label]

To Mrs. Mary Douglas: copy of a petition for power of attorney, written by B. F. Lillard, Murfreesboro, Tennessee, 1883.

[Scan page 90]

State of Texas, Ellis County

I, Mrs. Mary Douglas of this county and state, appoint B. F. Lillard of Murfreesboro, Tennessee, as my lawful attorney. In my name, he may demand from anyone holding it the share or interest in real estate that I inherited from Mrs. Rebecca T. Alexander, formerly of Rutherford County, Tennessee, now deceased.

I also authorize him to sue to recover that real estate and to file a request to divide it, or to sell it and divide the proceeds. I give him full power to do everything necessary in this matter, as fully as I could if I were personally present. I approve and confirm everything he may lawfully do, or have done, under this authorization.

This [day and month blank], 1883.

Witnesses: [blank].

SOURCE 05 • FOLDER 2 • SCAN PAGES 91-93

M. M. Dill asks the heirs to join the inheritance suit

[Scan page 91: label]

To Mr. George Douglas from M. M. Dill, Murfreesboro, Tennessee, February 26, 1883, concerning the Rebecca Alexander estate and lawyer Lillard. Mentions Mrs. Nance and Mandy, Isaac Wright's sister.

[Scan page 92]

Murfreesboro, February 26, 1883

Mr. George Douglas, Ferris, Texas

Dear sir,

Mr. Lillard, our attorney, has shown me your answer to two letters I asked him to write to your mother and Cousin Cynthia Orr. In reply, I have this to say.

No other attorney represents any of Rebecca Alexander's heirs, and there is no need for another. I have spoken with Cousin Docia [Bivins?], who said she was going to leave her share. I have also spoken with Isaac N. Wright, who joined me in hiring Mr. Lillard to investigate and take charge of the whole matter. We made it clear to him that he would represent all the heirs.

I have had letters written to all the heirs at a distance. He has received and answered a letter from Mrs. Nance. We are waiting for her power of attorney, since the whole matter has been explained to her and she says she wants her share. Isaac Wright received a letter from his sister Mandy asking him to act for her.

We want all the parties—

[Scan page 93]

—to join as plaintiffs in the petition to save the estate money. We thought it fair to give everyone a chance to join. The costs and attorney's fees will, of course, come out of the proceeds of the land, so you need not worry about that.

I assure you that Mr. Lillard is competent, has a reputation as an honest lawyer, and will treat everyone fairly. I have known him since infancy. Mr. Alexander has told several people he will not contest the matter and will do what is right. Our attorney is handling the case as smoothly as possible to avoid disputes, but a petition must be filed to sell the land, divide the proceeds, and settle each party's rights.

For now, we will take no steps concerning the 640-acre tract Alexander and his wife sold. The reasons will be explained to you in due time. The river tract and the Arkansas land will no doubt be surrendered. We want the petition presented at the next court term and have directed Mr. Lillard to prepare it. I wish they would return the powers of attorney to him immediately.

Your cousin,
M. M. Dill

SOURCE 05 • FOLDER 2 • SCAN PAGES 94–96

Lillard requests authority to represent Mary Douglas

[Scan page 94: label]

To Mrs. Mary Douglas from B. F. Lillard, Murfreesboro, Tennessee, December 30, 1882, with an addition dated February 11, 1883. Request for power of attorney in the inheritance from Mrs. Rebecca (Wright) Alexander, daughter of Jacob Wright.

[Scan page 95]

Murfreesboro, Tennessee, December 30, 1882

Mrs. Mary Douglas, [Ennis crossed out; corrected to Ferris], Texas

Dear Madam,

I suppose you have heard of the death of your cousin Mrs. Alexander, daughter of your uncle Jacob Wright. She left no will. Her real estate therefore passes to her next of kin, her living first cousins. As Messrs. Wright and Dill have informed me, these are three members of the Goodloe family, three of the Dill family, two of the Brasher family, and six of the Thompson Wright family.

Many of the heirs have hired me to represent them in this matter. At their request I write to you. It is very desirable that I represent all the interested parties, and I want authority to act for you. I have written to Mrs. Orr at the [Ennis crossed out; corrected to Ferris] post office. Please notify her.

We wish to proceed as smoothly as possible. When I have proper authority, I will demand possession of the real estate: 680 acres assessed at \$8,500. Land generally brings twice its assessed value. [Added between lines: also possession of the 640-acre tract mentioned below.] If possession is not given on demand, it will be necessary to sue to remove the occupants and recover the land.

After possession is obtained, a petition must be filed to divide the property or to sell it and divide the proceeds. There may be more real estate besides the 680-acre tract, probably 300 acres in Arkansas.

[Scan page 96]

Shortly before her death, they sold 640 acres of land in this county. Please sign and immediately return the power of attorney I sent you. Two people may witness it. You need not incur the expense of acknowledging it before a clerk, because it does not have to be registered. A letter authorizing me to represent you would have been enough, but I prefer to have the paper I sent you signed. Please answer at your earliest convenience.

Very respectfully,

B. F. Lillard

February 11, 1883: The letter above was mailed to Ennis and returned to me after twenty-eight days. I now learn that your post office is Ferris. Because of the delay, I hope you will answer immediately.

I am told the 640 acres mentioned above were sold to convert the property into money. The price was \$6,400, a rather low figure, payable on one, two, and three years' credit. The last two payments are not yet due. The deed is defective. I have investigated thoroughly and am satisfied that the courts can declare the sale void and recover the land.

Whatever the law gives you is right. If Mrs. Alexander had not wanted the land to go to her kin, she could have left it otherwise by will. Instead, she left the law of the land as her will.

B. F. L.

[Postscript written upside down at the top:] If you do not join the others as a plaintiff, it will be necessary to make you a defendant. Our reason is that we cannot present your claim or act for you without authority. Unless we hear from you immediately, limitation of the claim may become an issue [last phrase rendered from "because the Statute of Limitation"].

SOURCE 05 • FOLDER 2 • SCAN PAGES 97-104

Lillard defends his reputation and asks to keep the case

[Scan page 97: label] To George Douglas from B. F. Lillard, Murfreesboro, Tennessee, March 22, 1883. Defense of his character and request to represent the heirs of Rebecca T. Alexander.

[Scan page 98]

Murfreesboro, Tennessee, March 22, 1883

Mr. George Douglas, Ferris, Texas

Dear Sir,

I received your letter of March 15. I think you misunderstand several things. First, you must think that after I recover these lands I want to handle the money from their sale. You are mistaken. I only wanted to represent you—that is, your mother and aunt—in the lawsuit. I never draw a client's funds unless specifically asked; keeping the receipts and so forth is too much trouble. At the same time, understand that, thank God, I have plenty of worldly goods. I know of no one to whom I owe a cent or whom I have ever wronged.

You do not understand this state's law concerning attorneys. If an attorney collects money and fails to pay it over, he loses his license, is permanently barred from practicing law, is fined \$1,000, and is jailed for twelve months.

In my first letter to the ladies, I said that a letter instructing me to represent them was enough. The power of attorney I sent was a more formal and preferable method. I did not require them to acknowledge it before a clerk; you first suggested that. This shows that—

[Scan page 99]

—all I wanted was to do the legal work, at the request of those I represent here. I regret that this case has revealed considerable bitterness among people who have no interest in it except to injure me and help Alexander. They have tried to persuade my distant clients to discharge me and hire Alexander's lawyer. So far they have failed.

If they get all the nonresident parties who were made defendants onto Alexander's side—I had to name your mother and aunt as defendants when filing the petition—and then buy out my resident clients, the petition would be dismissed. Even a blind man ought to see through this.

I also hear that Alexander wants to buy the land. He once said it had been left to him by will, but abandoned that claim because of my persistent efforts against him and others who did not want to “disturb their Cousin Andy” or make him angry. If he wins nearly all the parties to his side in my petition for sale, he thinks he can influence the subdivision into lots and buy at his own price. Can you not see this? These are stubborn facts, and I have kept you fully informed.

You have Albert Jetton's recommendation of me as an attorney, the Free Press editorial I sent, and the certificates of Judge Beanton, the chancellor who will try the case; John Woods, chairman of the County Court—

[Scan page 100]

—ever since the war; and Colonel H. D. Robinson, clerk of the County Court. These attest to my character and standing as an honorable lawyer. I have practiced for twenty-five years.

Without me, your mother and aunt would have neglected their rights, because everyone else accepted the idea of a will. You would have had no case for which to hire a lawyer. In view of these facts, can a reasonable person with any gratitude or sense of justice accept property recovered through my services, then turn his back on me and attack my reputation as a lawyer and honorable man? Can he end our correspondence merely by saying, “We thank you for the interest you have taken in the matter,” and then give a relative power of attorney to hire his own friend instead of the friend I have proved myself to be?

I also referred you to Judge Peter Turney of Winchester, Tennessee, about my professional standing. He has known me since 1860. He introduced himself then by saying that the older lawyers considered my argument in a complicated real-estate case the finest made at that term of the Supreme Court.

I know someone here has written letters to prejudice you against me. It has been suggested that you were told I drink excessively. In the past I was prescribed—

[Scan page 101 is another copy of page 99; it adds no text. The letter resumes on page 102.]

[Scan page 102]

—whiskey for neuralgia and rheumatism caused by army wounds. Like others of my temperament who use whiskey, I sometimes used too much, but never regularly. I abandoned that prescription a long time ago. I now drink no intoxicants, not even beer, wine, or cider, as the town's citizens can testify. Anyone saying I ever neglected a professional engagement because of whiskey is saying something absolutely untrue.

I drink two cups of coffee a day and smoke tobacco, sometimes with a little mullein prescribed by a Methodist preacher several years ago. My respect for ladies is too great to let me chew tobacco. That is the full extent of my stimulants.

Isaac N. Wright, Colonel Brashears, Mr. Dill, and other local clients have known me since infancy and ought to know what is best. One other party said she would have nothing to do with the matter because both her husbands owe me, one living and the other lately deceased. Another local party hired a lawyer who wanted to join my petition but said he also represented several second cousins. I explained that his clients' interests conflicted with ours: my petition denied that second cousins had any interest. I would follow the profession's rules. When some people begin a partition suit and other interested parties do not want their lawyer, those others are named as defendants. I would do that here, because I did not want to practice for people who did not want me.

He said he had not investigated the parties' rights. I replied that I had. I do not want another lawyer in the case whom I must teach the law and then pay for the privilege by sharing my fees.

Please answer immediately. I will gladly answer any further inquiries.

Very respectfully,
B. F. Lillard

[Scan page 103: postscript]

One of your true friends tells me someone has written urging you to turn your back on me and hire a particular other lawyer here. I will explain how that began. Mr. Alexander asked the old gentleman to meet him in Murfreesboro one day this week. He did. They went to Alexander's lawyer's office, where the three had a long consultation. The gentleman then left that office, consulted another lawyer, and wrote suggesting that you hire the latter.

I have nothing against that attorney and would not be so uncharitable as to say anything against a fellow lawyer. But no lawyer is infallible. A lawyer can be deceived like anyone else when a case is presented from the opposite side, especially by an old person whose prejudices can be manipulated. Why did Alexander not include your cousin Albert Jetton, whose store is within seventy-five feet of that law office? You ought to be able to see through all this.

My petitions and work have won the battle unless trickery turns the tide. I am determined to prevent that. Anyone who helps the enemy defeat their own rights shall do so with their eyes open. If captured by the enemy in this lawsuit, they shall be willing captives. I also learned that Alexander's lawyer said he could not—

[Scan page 104]

—represent your mother and aunt. But he did not say that about one of my clients, Mrs. H. [Garth?], who lives in West Tennessee. Someone had influenced her son there by defaming me and recommending Alexander's lawyer, whom he hired. I caught up with them; they discharged Alexander's lawyer and retained me. Her son now writes that he will send me a formal power of attorney in a few days, as soon as he can have it properly acknowledged.

I have set out to defeat these parties and intend to do everything an honorable man can do. I will not allow unjust and wrongful impressions of me to go unchallenged. I have as many diplomas from as good universities as this country offers. My law diploma was signed twenty-five years ago by Judges Green and Caruthers of Cumberland University, the ablest jurists Tennessee ever had. I defy anyone to point to a single stain of dishonor on my character.

From what I have told you, you should understand these matters. I suggest showing all my letters to a good lawyer in your county and asking his advice. Nothing here is intended as criticism of your conduct toward me. Everything is written with the kindest feelings, because I fully understand what has influenced your mind.

Very respectfully,
B. F. Lillard

SOURCE 05 • FOLDER 2 • SCAN PAGE 105

Envelope and label for a letter from Lewis Jetton

Envelope: Mrs. Mary Douglas or Cynthia Orr, Red Oak, Texas. Postmarked Nashville, Tennessee, February 14. Docketed "From Lewis Jetton."

Archival label: To Mary Douglas and Cynthia Orr, sisters-in-law of the writer; from Lewis Jetton, February 12, 1883, concerning the inheritance from cousin Rebecca T. Alexander. [The label's parenthesis is unfinished. The letter itself is not on this page.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 106–108

Lillard explains the disputed land deed

[Scan page 106: envelope and label] To George Douglas, Ferris, Ellis County, Texas, from B. F. Lillard, Murfreesboro, Tennessee, February 26, 1883. Concerning the suit by Rebecca T. Alexander's heirs.

[Scan page 107]

Murfreesboro, Tennessee, February 26, 1883
Mr. George Douglas, Ferris, Texas

Dear Sir,

I received your letter of the 17th and enclose Mr. M. Dill's letter, which explains most of what you asked. I would be as unwilling to bring a suit to cheat someone of their rightful property as anyone who would refuse to accept the proceeds of such a suit.

The 640-acre tract was conveyed by deed to D. Travis for \$6,400, payable in three equal installments in August 1882, 1883, and 1884. The deed was undated, but A. M. Alexander acknowledged it before the clerk on July 15, 1881. That same day the clerk commissioned D. M. McKnight, a justice of the peace and A. M. Alexander's half-brother, to examine Mrs. Alexander privately about her consent to the deed. He certified that examination the next day. The deed was registered September 1, 1882, and she died November 11, 1882.

The legal point is that Rebecca Alexander's private examination was a judicial act. The justice was related to her by marriage within the sixth degree, so under our statute his examination was invalid and the deed transferred no title to Travis. Whether there was—

[Scan page 108]

—any agreement between Alexander and his wife to reinvest the proceeds, I do not yet know. If properly executed, the deed would have converted the land to personal property, and the money would have belonged entirely to her husband.

My remark in the earlier letter simply reported a client's conclusion about the purpose of that conversion. He told me he had once been at Mr. Alexander's house when Alexander argued for selling the land and buying town property. Alexander asked for his approval and seemed displeased by his answer, which opposed town property.

As for fees and costs, unlike your state, ours does not allow contingent fees. Such an arrangement would be improper financial participation in a lawsuit, and a suit undertaken on that basis would be dismissed. Of course, lawyers charge less when nothing is recovered, and consider the amounts involved. I can promise that we will not dispute the fees. As Mr. Dill's letter indicates, we may avoid contested litigation and simply file petitions to divide the property. If a contested suit over the 640-acre tract becomes necessary, I will explain all the details and await your instructions before using the ladies' names as plaintiffs.

The parties live far apart. I want proceedings started in time for the next court and hope you will answer immediately.

Very respectfully,
B. F. Lillard

[Note at top:] No one can oppose my demand that Alexander surrender the land. When I receive the powers of attorney, I will be authorized to make that demand for Mrs. Orr and Douglas Jetton [wording as written] with the others.

SOURCE 05 • FOLDER 2 • SCAN PAGE 109

Repeated envelope and label

Another copy of the Lewis Jetton envelope and February 12, 1883 label on page 105. No additional text.

SOURCE 05 • FOLDER 2 • SCAN PAGE 110

Albert Jetton recommends Lillard

Murfreesboro, February 12, 1883

Dear Aunt,

I am, and have been all my life, acquainted with B. F. Lillard. He ranks as a first-class lawyer at the Murfreesboro bar. He is a gentleman, reliable in every respect, and will promptly attend to any business entrusted to him. I take pleasure in recommending him to you.

Your nephew,
Albert Jetton

SOURCE 05 • FOLDER 2 • SCAN PAGES 111–113

Lewis Jetton urges caution before suing

[Scan page 111]

February 12, 1883

My sisters, Cinthy and Mary,

I learned by accident that Mr. Lillard is seeking business and is writing to Rebecca Alexander's supposed heirs. I think he is moving too fast. Today Dr. Dickson told me that Mr. Alexander wants no lawsuit and, if there is no will, will do whatever is right in the matter.

Under these circumstances, I would not bring suit until the matter is fully developed. Then I would choose my own attorney. The case is not yet understood.

[Scan page 112]

Mr. Lillard is working for large fees. Of course, you ought to know what is best for you to do. Your friends here will tell you if anything occurs that threatens your rights. I would give no attorney power to act until I knew him.

L. Jetton

You must keep the above private within the family. There is no excitement about the matter here yet. Just common working on heirs at a distance to save the case from other lawyers [the final sentence is awkward and its intended meaning uncertain].

[Scan page 113]

I believe A. M. will do right. He has always been a clever man.

SOURCE 05 • FOLDER 2 • SCAN PAGES 114–116

Lillard's further explanation of the heirs' choices

[Scan page 114: envelope and label] Mrs. Mary Douglas, Ferris, Ellis County, Texas. Sender's return address: B. F. Lillard, attorney, Murfreesboro, Tennessee. Label says written on the 15th, with no further date. [The surviving text begins with a postscript.]

[Scan page 115]

P.S. J. W. Sparks, administrator of Mrs. Bivins's estate, told me that about two weeks ago Mr. A. M. Alexander said that if no will was found, he did not want a lawsuit and would surrender the land. A will

disposing of such a large estate would hardly be hidden in a corner. None has yet been found, and you may be sure none will be produced.

I have fully investigated recovering the 640-acre tract. I am satisfied the deed can be declared invalid, but the parties must decide whether to seek that. My duty as a lawyer is to explain their rights; the clients decide whether to exercise them. Alexander is rich without this land. If he were needy and losing the benefit of the 640 acres would leave him poor, a moral question would arise. I admit I could not zealously prosecute a suit to recover it in that situation. I do not think such considerations apply here.

We do not know why she joined in the deed, but we know she had refused to sell for years. We are also told that she said her father, on his deathbed, told her he had made no will and asked her to promise the same. She said she had promised and did not want Alexander's kin to have her property. The law of the land therefore served as her will. Had she wanted otherwise, she could have decided otherwise. I do not even suppose she knew her personal property would go to her husband. Having her private examination—

[Scan page 116]

—taken by a relative, certifying that she signed freely and voluntarily without her husband's pressure, is at least a suspicious circumstance. But the heirs must consider these matters for themselves.

I hear a few heirs say they want none of the property. The limitation period does not run against some of them, since two have living husbands. Mr. Dill also thinks certain business relationships exist between them and Alexander. Once he and others recover the property, or have everything ready, they may join so as to avoid Alexander's displeasure. I tell you this confidentially because I want you fully informed about events here.

I suppose Albert Jetton and Mr. Dill have satisfied you about my reliability as an attorney. Since you agree everyone should have the same attorney, I expect the powers of attorney. It would be better to acknowledge them before a notary, but as I said before, any written authorization is enough to bring the suits or file the petitions.

Very respectfully,
B. F. Lillard

SOURCE 05 • FOLDER 2 • SCAN PAGE 117

Albert Jetton clarifies his recommendation

[Label identifies the recipient as Mrs. Mary Douglas.]

Murfreesboro, February 14, 1883
Aunt,

I write so you will know that I am not advising a lawsuit. I am only recommending Mr. Lillard as a lawyer.

Yours,
A. Jetton

SOURCE 05 • FOLDER 2 • SCAN PAGE 118

Label for a family letter from Readysville

To Mrs. Susanna (“Sis”) Bell, from cousin L. A. Jetton (Lewis), Readysville, Tennessee, February 20, 1870.
Tells of the death of Polly Wright.

SOURCE 05 • FOLDER 2 • SCAN PAGES 119–121

Family news for Sis Bell

[Scan page 119]

Readysville, Tennessee, February 20, 1870

Mrs. Sis Bell

My very dear cousin,

I sit down this cold Sunday morning to answer your kind and interesting letter, which arrived in due time. I would have written sooner, but I have been very sick and am only just able to get about again. Dr. Briggs, who attended me, thinks a cold brought on my illness and affected my whole nervous system. I have never suffered so much in my life and am still very weak.

The rest of the family are well and managing nicely in this cold weather. Aunt Clark has been with us several days but plans to leave tomorrow—

[Scan page 120, left column]

—if the weather is not too bad. The legislature is expected to adjourn by March 15, and this may be her last visit with us. We are all very sorry to let her go; she has been with us so much that she seems part of the family. We will be very lonely when she leaves.

Sallie Wilder is also spending a few days with us. She tells us she has had three divorces but is lively as a cricket and thinks she would like to marry again if she could get a chance. The relatives are all tolerably well now. John's wife has another fine boy, three weeks old. John's health is as good as usual.

Old Aunt Polly Wright died about two weeks ago, I suppose from old age. I have heard nothing from [Baas?]'s family lately, so I suppose they are all well or we would have heard.

[Scan page 120, right column]

You want to know all about the girls, whom they married, and how they are getting along. I will try to explain. Sarah married a drunken, trifling fellow named Tulliver. They have been married fifteen years and have eight living children. They live on rented land not far from Mr. [Baas?]. Tulliver drinks up nearly everything he makes and his family has a very hard time.

Sinth married a man named Topply. He does not drink, but he is so lazy he hardly supports his family. Sinth is very fat; she reminds me of a bag of cotton with a string tied around it. She has only two children. Maria is the best-looking and smartest of the family. She married [Darmon?] Knight. He was killed shortly after we came here, in a drunken spree. Maria has five children, two boys large enough to work. She lives at her father's.

[Scan page 121]

[Grace?] married a widower with several small children. I do not remember his name, but I think he is very good for her. Mag is still single and likely to remain so. Hugh is married and lives in the city.

I will tell you what Mr. [Baas?] says about his sons-in-law: the devil owed him a grudge and has paid him back in sons-in-law. [Baas?] looks older for his age than almost anyone you could see. Aunt [Jude?] looks very old and is in poor health.

Well, Cousin Sue, I still get very low-spirited sometimes. My health is bad. If I could only get well and be able to work, I would be better satisfied. Pap is always complaining about his poverty, how hard it is to get along, and his fear that he will starve. You do not know how bad I feel sometimes. But enough of that painful subject.

The children are not going to school. Mary and I have been doing the housework since Christmas, until I got sick. I would be glad to earn money if I could stand to work. Give my love to everyone and write soon. Tell Ellen to write to Mary. Give my love to Cousin Ellen and tell her to look for a letter in a few days.

Ever your friend and cousin,
L. A. Jetton

SOURCE 05 • FOLDER 2 • SCAN PAGES 122–125

Jesse Douglas reports a birth and damage to the crops

[Scan page 122: label] To George and Lizzie Douglas from Jesse Douglas, Cross Creek, Texas, August 30, 1869. Announces the birth of Earl Stewart Douglas.

[Scan page 123]

Cross Creek, Travis [County], Texas, August 30, 1869
George and Lizzie,

Your letters arrived and were gladly received, for I am always anxious to hear from home, Brushy, and the surrounding area. I have nothing very interesting to report just now. The weather here has been extremely hot and dry since what I call the flood. There is consequently much sickness farther down, mostly chills and fever.

I spent three days riding last week, trying to rent a place nearer Austin, but failed. Everything is occupied for another year. Many people, though not all, are sick this season. I have become a little dissatisfied with the mountains because of the rough road and the distance from Austin. I had fully decided to move to Arkansas this fall. But the grief and tears of a good old mother-in-law prevent me, at least while she lives—and she may outlive me.

[Scan page 124]

My grass was a total loss and half the corn is rotten. At first I thought my cotton was unhurt, but time tells the truth. I now expect perhaps a third of a crop. All this tends to get a man a little downhearted.

Continuing in the same eloquent strain, tell Tom and Laura that “Dubs” beats me [word uncertain]. But on August 2, Earl Stewart Douglas arrived, weighing ten pounds. He is growing nicely, and [Mollie?]

has been up doing her work for two weeks. I think that is enough to lift a man's ambition above the rotten-corn level—what do you say?

I will stop for now, since I do not know when I can mail this.

September 15: I sit down to add a few lines. We have all been a little sick. Everyone is well now except Earl, and he is improving. I have been gathering corn for a few days and am not half finished. My share will be about 300 bushels of sound corn and 150 or 200 of rotten or partly rotten corn, which—

[Scan page 125]

—will do the hogs a little good. If nothing happens, I will leave for the city tomorrow morning and mail this there so you receive it a day or two sooner.

Judging by the cotton's opening, I fear I will make no more than one bag. McCleon has already picked between five and six thousand [no unit stated] from about eight acres. You can see how the overflow counts against me. There is still much sickness in the country.

No news, except that people keep marrying in these parts. I do not know how they are to live, but that is their business, not mine. I worked hard today, so I will close. Write soon.

Yours in haste,
Jesse Douglas

Tell Sarah I am coming to see her this winter or fall.

SOURCE 05 • FOLDER 2 • SCAN PAGE 126

Label for Jesse's letter to Sarah

To daughter Sarah (“Sal”) from Jesse Douglas, Alexander, Texas, June 15, 1884.

SOURCE 05 • FOLDER 2 • SCAN PAGES 127–128

A possible teaching position for Sarah

[Scan page 127]

Alexander, Texas, Sunday morning, June 15, 1884

Dear Daughter,

We are all tolerably well and hope you are the same. Well, Sarah, the Honorable J. C. Roe has eighteen pupils subscribed, with a promise of more, by sending [unclear] Crowley. Andrew Turnbow has returned from Washington. He made the round trip in three weeks to the day. He lives at the same place and says he will send [a pupil or pupils] if he stays there. I think you might count on twenty pupils—

[Scan page 128]

—perhaps more; I cannot tell. Mr. Roe is anxious for you to come and begin July 7. If that is the best you can do, I will look for you and [unclear] out.

There will be a barbecue at Alexander and also one at Carlton on the Fourth. Nothing else of importance. Write and tell me what day you will be at Alexander.

Yours affectionately,
Jesse Douglas

SOURCE 05 • FOLDER 2 • SCAN PAGES 129–133

Jesse explains why he cannot visit or move

[Scan page 129: label] To George Douglas from Jesse Douglas, Cross Creek, Travis County, November 28, 1869.

[Scan page 130]

Cross Creek, Travis County, Texas, November 28, 1869
George,

In answer to your last letter—and to Brushy generally—you wanted me to appear in person. As you see, that has failed. I intended all along to visit Ellis this fall, but when I was ready I was sick. As I recovered, Nancy became ill, bordering on congestion. Before that, Eli had a fever. Earl has [a cough?]. We are all up now and tolerably well.

My [crop, partly lost at torn edge] amounted to one bale weighing 434 pounds. That paid my debts and left me one dollar. The sale and settlement were before the sickness. Medicine and the doctor's bill since then leave me about thirty dollars behind. I expect to settle that by selling pork this winter. I have not penned the hogs yet, wanting them to benefit as much as possible from the woodland mast, but expect to pen them this week.

[Scan page 131]

George, moving during old Mrs. Stewart's lifetime is out of the question. I think she would go crazy. She is old and frail in body and mind, though she may outlive younger people. I am not sure whether I will remain on this place next year; a couple of months will decide. Since I cannot move from this part of the country, I leave you to work out the figures for the old farm.

The overflow and sickness have given me [a serious setback; wording damaged] in making a living, and it will take time to start again. There is a proposal that I move to McCleon's [place name unclear]. That would cost me my present hogs. I could not move them because they would run back to the mountains. If I left them here, someone else would eat them. A moving man's things go for nothing, but a buyer has to pay the highest price.

[Scan page 132]

I have made a land investment for Sarah's benefit: 320 acres on Kickapoo Creek in Hood County. The title was to be transferred about the 20th of this month. It is a good title unless the land was sold for taxes; if so, the parties agree to redeem it at their expense.

It cost me my noble animal, Billy Capshaw, without doubt superior to McDonald's [part of phrase struck through or damaged]. That trade and the sickness have thrown me low. From now on I must ride a mule, drive a mule, hire a mule, or walk.

The land is the lower or east half of a 640-acre survey known as the G. G. Briscoe headright. I have gone into it rather blindly, but so be it. The survey is six and a half miles from the Brazos. I have nothing else interesting to report. Write soon and often.

[Scan page 133]

I believe I owe all of you letters, but did not want to write while we were sick. This will have to serve for everyone. My respects to all the families and children, and my love to Sarah.

It is almost impossible for me to come this winter. I would have to hire someone to attend to fattening the hogs and borrow the travel money.

Your brother, as ever,
Jesse Douglas

Eli weighs thirty-two pounds. Earl is growing nicely, can stand his weight, and can almost sit down. I will address this to Henry because he is most central. You should address letters to Bee [word uncertain; written above "Spencer"]. I expect to mail this in Austin, if nothing happens, as the election is at hand.

SOURCE 05 • FOLDER 2 • SCAN PAGE 134

Label for the conveyance to Lizzie Douglas

Warranty deed: heirs and heirs-in-law convey Mary Douglas's estate to Lizzie Douglas, October 8, 1886.

SOURCE 05 • FOLDER 2 • SCAN PAGES 135–136

The heirs give their interests in Mary Douglas's land to Lizzie

[The deed's first page is scan 136; its continuation and signatures are scan 135. They are placed in reading order here.]

[Scan page 136]

State of Texas, Ellis County

We, the undersigned Texas citizens and legal heirs of Mary Douglas, deceased, of Ellis County, give and transfer to Lizzie Douglas all our rights, title, claims, and interests in Mary Douglas's real estate. We do this in return for Lizzie's services to Mary during the last years of Mary's life.

The property is part of the 1,280-acre survey patented in A. J. Porter's name. Its boundaries are given below. [Compass bearings and the historical unit "vara" are retained so the description can be compared with the scan.]

Begin at a stake at the southwest corner of the A. J. Porter survey; see the original patent for the bearing references. Go N 30° W, 87 varas, to a stake. An elm bears N 22° E, 3½ varas; a hackberry bears S 22° W, 2 varas. Go N 60° E, 323 varas, to a stake. An ash bears N 48° W, 1 vara, and an elm bears N 57° W, 7 varas. Go N 30° W, 17 varas, to a stake. An ash bears N 70° W, 7½ varas; another bears S 67° E, 5½ varas.

[Scan page 135]

Go N 60° E, 540 varas, to a stake. An elm bears N 30° W, 3 varas, and another N 30° E, 3 varas. Go N 30° W, 574 varas, to a stake. An ash bears N 30° W, 2 varas, and another N [10?]° W, 3 varas. Go N 60° E, 268 varas, more or less, to a stake in Ephraim Andrews's west boundary. Go S 7½° E to a stake in the south boundary of the Porter survey. Go S 60° W, 888 varas, to the beginning. The tract contains thirty acres, more or less.

Lizzie Douglas and her heirs and assigns are to hold the land and all associated rights permanently. We guarantee and will defend her title against anyone claiming through us.

October 8, 1886

Signatures: George Douglas; Warren Douglas; Laura Robison; Geo. Stanford; Ellen [middle initial obscured] Stanford; R. A. Farrar; M. D. Farrar; W. E. Bell; Johnnie Bell; [C.?] H. Headrick; Sarah G. Headrick; Thomas [Robison?; faint]. [A small "G. Douglas" also appears near the obscured Stanford signature.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 137

Thomas and Laura Robison acknowledge the deed

State of California, Ventura County

Before James McKee, a duly commissioned and sworn notary, Thomas J. Robison and his wife Laura Robison personally appeared. He knew them as the people who signed the instrument, and they acknowledged signing for its stated purposes.

After he examined Laura privately, apart from her husband, and fully explained the instrument, she acknowledged it as her own voluntary act and said she did not wish to withdraw it.

October 14, 1893

James McKee, notary public, Ventura County, California. Commission expires August 31, 1897.

[The upper edge repeats the preceding deed's standard ownership and warranty language.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 138

Envelope accompanying the later deed

To Miss Lizzie Douglas, Ferris, Ellis County, Texas. Marked "For Record." Return address: Box 1448, Oklahoma, Oklahoma Territory. Postmarked March 25, 1893.

Archival label: warranty deed from the undersigned heirs-in-law conveying Mary Douglas's estate to Lizzie Douglas; July 5, 1892; filed January 24, 1894 [label's day overwritten; the recording docket below reads January 4 and January 21].

SOURCE 05 • FOLDER 2 • SCAN PAGES 139-142

Further heirs convey the same thirty-acre tract to Lizzie

[Scan page 139: acknowledgments and recording docket, shown here after the main deed for easier reading.]

[Scan page 140]

State of Texas, Ellis County

We, the undersigned legal heirs of Mary Douglas, deceased, formerly of Ellis County, give, release, and transfer all our claims to Lizzie Douglas. The consideration is one dollar paid to us and Lizzie's many services to Mary during the last years of Mary's life.

The land is in Ellis County, about twelve miles northeast of Waxahachie, and is part of the A. J. Porter 1,280-acre survey.

Begin at a stake at the southwest corner of the Porter survey; see the original patent for bearing references. Go N 30° W, 87 varas, to a stake. An elm bears N 22° E, 3½ varas, and a hackberry S 22° W, 2 varas. Go N 60° E, 323 varas, to a stake. An ash bears N 48° W, 1 vara, and an elm N 57° W, 7 varas. Go N 30° W, 17 varas, to a stake. An ash bears N 70° W, 7½ varas; another ash S 67° E, 5½ varas. Go N 60° E, 540 varas, to a stake. An elm bears N 30° W, 3 varas, and another N 30° E, 3 varas. Go N 30° W, 574 varas, to a stake—

[Scan page 141]

—where an ash bears N 30° W, 2 [varas], and another N 70° W, 3 varas. Go N 60° E, 268 varas, more or less, to a stake in Ephraim Andrews's west boundary. Go S 7½° E to a stake in the south boundary of the Porter survey. Go S 60° W, 888 varas, to the beginning. Total: thirty acres, more or less. [The final word “The Same” appears without a completed sentence.]

Lizzie Douglas and her heirs and assigns are to hold this land and its associated rights forever. We bind ourselves, our heirs, executors, and administrators to guarantee and defend it against us, our heirs and assigns, and anyone claiming through us.

Signed June 4, 1891: Nancy Douglas; Earl Douglas; J. A. McDaniel; Emily J. [McDaniel; signature appears “Daniel”]; [Davis] Duff; [Ora] Duff; E. L. Winiford [last line partly cut off].

[Scan page 142]

Ellis County, Texas: Before notary R. P. Markay [surname uncertain], James McDaniel and his wife Emily McDaniel, and Davis Duff and his wife Ora Duff, acknowledged the instrument. Emily and Ora were each examined apart from their husbands and said they signed willingly and did not wish to withdraw it. July 5, 1892.

Erath County, Texas: Mrs. Nancy Douglas and Earl Douglas appeared before J. S. Watson, justice of the peace and ex officio notary, and acknowledged signing for the stated purposes. June 4, 1891. [An earlier handwritten version of this certificate is crossed out.]

[Scan page 139, corresponding to the remaining certificates]

A proposed California acknowledgment for T. J. Robison, Ventura County, is crossed out and undated.

Oklahoma Territory, Oklahoma County: E. L. Winiford appeared before L. N. Wise, notary public, and acknowledged signing for the stated purposes. March 25, 1893. The notary's commission expires January 11, 1895.

Recording docket: “McDaniel and [others] to Lizzie Douglas.” Filed January 4, 1894, at 12:30 p.m., with county clerk J. T. [Starkey?], by [Reams?] [surname unclear], deputy. Recorded January 21, 1894, in Ellis County deed records, Book 66, page 353. [The clerk's certificate at the bottom of scan 142 repeats these filing and recording details; several handwritten letters are faint.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 143

Label for H. D. Winiford's deed

H. D. Winiford and others to Lizzie Douglas. Deed dated May 5, 1891.

Winiford family interests transferred to Lizzie Douglas

[Scan page 145: main deed]

State of Texas, Ellis County

We, E. L. Winiford and his wife Millie Winiford of Oklahoma Territory; Walter Roper and his wife Mary S. Roper, and H. D. Winiford, of Howard County, Texas; and John McCrary and his wife Alice E. McCrary of Floyd County, Texas, are the sole heirs of Lucy S. Winiford, deceased, formerly of Ellis County.

For \$160 paid by Lizzie Douglas, we sell and transfer to her all our rights, title, claims, and interests in Lucy's estate. This consists of approximately sixteen acres: an undivided one-fifth interest in an eighty-acre tract forming part of the A. J. Porter 1,280-acre survey in Ellis County. Lucy received this interest through a deed from Mary Douglas, jointly with us as heirs of Rebecca Winiford. [The deed varies the spelling of Winiford; some instances look like "Hinniford."]

The eighty-acre tract is described as follows. Begin at the northwest corner of the Porter survey, at a stake; an elm bears N 37° W, 65 [3/10?] varas. Go N 60° E, 1,344 varas, to a stake; an elm fourteen inches in diameter bears N 61° E, 95 varas. Go S 30° E, 130 varas, to the middle of Cottonwood Branch. Follow the branch S 60° E, 130 varas, to a stake; a cedar bears S 22½° E, 18 varas, and an elm six inches in diameter bears S 67° W, 20 varas. Go S 60° W, 1,369 varas, to a stake in the west line of the Porter survey. Go N 30° W, 336 varas, to the starting point. The total is eighty acres, more or less.

[Scan page 146]

Lizzie, her heirs, and her assigns are to hold the property and all its associated rights forever. We bind ourselves, our heirs, executors, and administrators to guarantee and defend that title against anyone making a lawful claim.

Signed October 13, 1890. Visible signatures include H. D. Winiford, Walter Roper, Mary Roper, and Alice E. McCrary. [Other signature lines are obscured by the dark scan. The grantors are listed above.]

[Scan pages 147-148: acknowledgments; portions overlap between the scans]

Howard County, Texas: A certificate ending at the top of page 147 is dated January 2, 1891, and signed by A. O. Walker, county clerk. [Its beginning is partly obscured on page 146.]

Walter Roper and Mary Roper appeared before A. O. Walker, clerk of the Howard County Court, and acknowledged signing the instrument. Mary was examined privately, apart from her husband; after the deed was explained, she said she signed willingly and did not wish to withdraw it. January 2, 1891.

Floyd County, Texas: John McCrary acknowledged the deed before R. D. White, justice of the peace and ex officio notary public, on March 4, 1891. Alice E. McCrary, John's wife, was separately examined by the same official. She acknowledged signing willingly and said she did not wish to withdraw it. March 4, 1891. [Alice's acknowledgment appears in both scans.]

[Scan page 149]

Oklahoma Territory, Oklahoma County: E. D. Winniford and his wife Millie Winniford appeared before [given name unread] Guthrie, notary public, and acknowledged signing the deed. Millie was examined apart from her husband and said she signed willingly and did not wish to withdraw it. April 4, 1891.

[This certificate appears to use the initial D; the main deed uses L. The commission's expiration date is partly illegible.]

[Scan page 144: filing and recording docket]

H. D. Winiford and others to Lizzie Douglas. Filed May 5, 1891, at 10:30 a.m., with E. P. Hawkins, Ellis County clerk. Recorded May 5, 1891, at 3 p.m., in Deed Book 62, page 590 [and following], by J. A. Lasswell, deputy.

SOURCE 05 • FOLDER 2 • SCAN PAGES 150–151

Inventory of N. L. Douglas's estate

[Scan page 150: archival label dates this inventory October 31, 1874. The sworn statement on page 151 appears to say October 3, 1874.]

Inventory of the estate of N. L. Douglas, deceased, supplied by Mary Douglas, his widow.

The land consists of 640 acres in the A. J. Porter 1,280-acre survey, on Sublett's Creek, Ellis County, Texas, patented in the name of Porter's heirs.

Property	Stated value
94 acres in cultivation, at \$15 an acre	\$1,410.00
546 unimproved acres, at \$5 an acre	\$2,730.00
9 horses	\$265.00
20 cattle	\$120.00
14 hogs	\$73.00
20 beehives	\$40.00
2 pairs of trace chains	\$1.80
1 plow	\$4.00
1 log chain	\$0.80
1 grubbing hoe	\$0.75
Part of a set of wagon irons	\$4.00
1 grindstone	\$3.00

Subscribed and sworn before Wm. L. Hancock, justice of the peace, Ellis County, Texas, Precinct No. 3, October [3rd], 1874. Appraisers: E. A. [Gorman?] and W. R. Duff.

SOURCE 05 • FOLDER 2 • SCAN PAGE 152

Label for the heirs' deed to Lizzie

Heirs of Mary Douglas, deceased, to Lizzie Douglas. Deed; May 28, 1894. [This is the filing date; the following acknowledgment pages bear earlier dates.]

SOURCE 05 • FOLDER 2 • SCAN PAGE 153

Second copy of the estate inventory

This separately written inventory repeats the property and values on scan page 151, in a different order. It adds that the A. J. Porter survey was patented to Porter's heirs on June 18, 1849. The number of hogs is corrected from 13 to 14. The land is again described as 640 acres on Sublett's Creek: 94 improved acres and 546 unimproved acres. It lists the same nine horses, twenty cattle, fourteen hogs, twenty beehives, tools, and wagon irons, with the same stated valuations.

SOURCE 05 • FOLDER 2 • SCAN PAGES 154–155

Additional acknowledgments for the heirs' deed

[These pages contain acknowledgments and a recording docket; no new main deed text appears here.]

[Scan page 154]

Ellis County, Texas: George Douglas appeared before R. P. Mackay, notary public, and acknowledged signing the deed for its stated purposes and consideration. October 9, 1886.

Johnson County, Texas: Warren Douglas acknowledged signing the deed for its stated purposes and consideration. January 27, 1887. John T. [Odell?], district court clerk, by Jerry [Towers?], deputy.

[Scan page 155]

Ellis County, Texas: George Stanford and his wife Ellen Stanford; R. A. Farrar and his wife M. D. Farrar; W. E. Bell and his wife Johnnie Bell; and J. H. Headrick and his wife S. G. Headrick appeared before S. B. Farrar, notary public. They acknowledged signing the instrument for its stated purposes. The four wives were each examined privately, apart from their husbands. After the document was explained, they acknowledged signing of their own free will and said they did not wish to withdraw it. April 15, 1891.

Docket: "Heirs of Mary Douglas, dec'd, to Lizzie Douglas—Deed." Filed May 28, 1894, at 11:30 a.m., with T. F. Thompson, Ellis County clerk, by A. Lasswell, deputy. Recording certificate: May 29, 1896, at 9:40 a.m., Deed Record Book 92, page 516; T. F. Thompson, clerk, by Mordaunt Rink, deputy. [The filing and recording years differ as written.]

SOURCE 05 • FOLDER 2 • SCAN PAGES 156-158

Mary Douglas gives land to Lizzie, retaining its use for life

[Scan page 156: label describes a deed concerning N. L. Douglas's heirs and Lizzie Douglas, made by Mary Douglas, February 25, 1875.]

[Scan page 158: main deed]

State of Texas, Ellis County

I, Mary Douglas, acknowledge receiving Lizzie Douglas's quitclaim deed transferring her interest in N. L. Douglas's estate to me. In exchange, I release and convey to Lizzie the following land in Ellis County, about eighteen miles N 30° E from Waxahachie, on Sublett's Creek, part of the survey patented in A. J. Porter's name.

Begin at a stake, from which an elm fifteen inches in diameter bears [bearing and distance indistinct], and another elm four inches in diameter bears N 64° W, 68 varas. Go N 30° W; cross Sublett's Creek at 150 varas, and at 975 varas reach a stake in the south line of an eighty-acre survey made for Rebecca Winniford's heirs. Go S 60° W, 475 varas, to a stake; an elm four inches in diameter bears S 75° W, 9 varas, and another [elm] bears S [83?]° W, 7 varas. Go S 30° E, 975 varas, to a stake; an elm four inches in diameter bears N 11° E, 1½ varas. Go N 60° E, 475 varas, to the starting point. Total: [82] acres, more or less. [Some survey reference markings are faint.]

Lizzie is to hold the land and all associated rights forever. I bind myself, my heirs, and assigns to guarantee and defend her title, and that of her heirs and assigns, against all claims through me.

However, I retain the use and control of this land and its buildings for the rest of my natural life.

[Scan page 157: signature and certificates]

Signed February 25, 1875: Mary Douglas.

Ellis County, Texas: Mary Douglas appeared before the undersigned official and acknowledged signing the deed for its stated purposes and consideration. She said she did not wish to withdraw it. Certified at Palmer, February 25, 1875, by Wm. L. Hancock, justice of the peace, Ellis County, Texas, Precinct No. 3. Certificate No. 86.

Docket: Mary Douglas to Lizzie Douglas. Filed August 21, 1875, at 10:30 a.m.; Book O, page 3 [docket notation]. The formal recording certificate states that it was recorded August 28, 1875, at 10 a.m., in Deed Record O, page 884, by J. M. Phillips, Ellis County district court clerk, through H. C. Wise, deputy. [Both page references are retained as written.]